

CHAPTER 36

An Act to increase to threepence the maximum poundage payable in respect of postal orders for amounts not exceeding twenty-one shillings. [9th July, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The limit specified, in the proviso to subsection (2) of section one of the Post Office (Amendment) Act, 1935, on the poundage payable in respect of postal orders for an amount not exceeding twenty-one shillings shall be increased by one penny; and accordingly in the said proviso for the word "twopence" there shall be substituted the word "threepence".

Increase to threepence of maximum poundage on certain postal orders.
25 & 26 Geo. 5. c. 15.

2.—(1) This Act may be cited as the Post Office (Amendment) Act, 1952, and the Post Office Acts, 1908 to 1940 and this Act may be cited together as the Post Office Acts, 1908 to 1952.

Short title, citation and extent.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) This Act shall extend to the Channel Islands, and the Royal Courts of the Channel Islands shall register this Act accordingly.

(4) This Act shall extend to the Isle of Man.

CHAPTER 37

Civil List Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Payment of hereditary revenues to the Exchequer.
2. Annual payment for the Queen's Civil List.
3. Provision for His Royal Highness the Duke of Edinburgh.
4. Provision for Her Majesty's younger children.
5. Provision for Her Royal Highness the Princess Margaret in the event of her marriage.
6. Provision for widow of the Duke of Cornwall.
7. Payments by Treasury in respect of retired allowances.
8. Charge of payments under this Act.
9. Application of sums paid for the Queen's Civil List.
10. Constitution of Royal Trustees.
11. Meaning of "net revenues of the Duchy of Cornwall".
12. Adjustments in respect of parts of years.
13. Continuance of enactments, repeal and commencement.
14. Short title.

SCHEDULES.

An Act to make provision for the honour and dignity of the Crown and the Royal Family, as to the disposal in certain circumstances of revenues of the Duchy of Cornwall, and for the payment of certain allowances and pensions. [1st August, 1952.]

Most Gracious Sovereign,

WHEREAS Your Majesty has been graciously pleased to signify to Your faithful Commons in Parliament assembled that Your Majesty placed unreservedly at their disposal those hereditary revenues which were so placed by Your Predecessor, and that Your Majesty is desirous that provision should be made for His Royal Highness the Duke of Edinburgh and for Your Majesty's children other than His Royal Highness the Duke of Cornwall, and that provision should be made for Her Royal Highness the Princess Margaret in the event of her marrying and for any future wife of His Royal Highness the Duke of Cornwall in the event of her surviving his Royal Highness:

And whereas Your Majesty has further been graciously pleased to signify Your Majesty's intention to assent to arrangements for applying, during the minority of His Royal Highness the Duke of Cornwall, a part of the revenues of the Duchy in relief of the charge for Your Majesty's Civil List, and, in the event of those revenues vesting in Your Majesty, to provide for Your Majesty's Civil List out of those revenues in so far as they are sufficient:

And whereas it is expedient, forasmuch as it is happily to be expected that Your Majesty's reign will last for many years, to make provision under which so much of the sum charged for Your Majesty's Civil List as is not required for current expenditure will be set aside and accumulated in the hands of trustees so as to be applicable for meeting expenditure in later years, and it is expedient to reserve for the future determination of Parliament to what extent and by what means sums remaining in the hands of the trustees at the end of Your Majesty's reign should be available for making provision for members of Your Majesty's family other than those for whom provision is made by this Act corresponding to that which Your Predecessors have been accustomed to make out of savings accruing to the Sovereign's Privy Purse:

Now, therefore, we, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, have freely and voluntarily resolved to make such provision as hereinafter appears for the purposes aforesaid, and we do most humbly beseech Your Majesty that it may be enacted,

and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The hereditary revenues which were by section one of the Civil List Act, 1937, directed to be carried to and made part of the Consolidated Fund shall, during the present reign and a period of six months afterwards, be paid into the Exchequer and be made part of the Consolidated Fund. Payment of hereditary revenues to the Exchequer.

2.—(1) There shall, during the present reign and a period of six months afterwards, be paid for the Queen's Civil List the yearly sum of four hundred and seventy-five thousand pounds. Annual payment for the Queen's Civil List.

(2) In respect of any period during which the Duke of Cornwall for the time being is a minor, the sum payable under the preceding subsection shall be subject to a reduction of an amount equal to the net revenues of the Duchy of Cornwall for the year, less—

- (a) for each year whilst he is under the age of eighteen years, one equal ninth part of those revenues,
- (b) for each of the last three years of his minority, thirty thousand pounds,

and the net revenues of the Duchy up to the amount of the reduction to which the said sum is subject by virtue of this subsection shall be at the disposal of Her Majesty.

(3) In respect of any period during which the Duchy of Cornwall is vested in Her Majesty, the sum payable under subsection (1) of this section shall be subject to a reduction of an amount equal to the net revenues of the Duchy for the year.

3. There shall be paid to His Royal Highness the Duke of Edinburgh during his life the yearly sum of forty thousand pounds. Provision for His Royal Highness the Duke of Edinburgh.

4.—(1) There shall be paid to the trustees hereinafter mentioned as a provision for the benefit of the children of Her present Majesty, other than the Duke of Cornwall for the time being, yearly sums of the following amounts, that is to say— Provision for Her Majesty's younger children.

- (a) in respect of each such child who either attains the age of twenty-one years or marries, ten thousand pounds in the case of a son and six thousand pounds in the case of a daughter, and further
- (b) in respect of each such child who marries, fifteen thousand pounds in the case of a son and nine thousand pounds in the case of a daughter,

to commence from the date of his or her attaining that age or marrying (whichever is the earlier) in the case of a sum falling

within paragraph (a), and from the date of his or her marrying in the case of a sum falling within paragraph (b):

Provided that the sum payable in respect of any such son or daughter shall cease to be paid on the death of that son or daughter.

(2) The trustees shall hold the yearly sums paid to them under this section in trust for all or any one or more of the children of Her present Majesty, other than the Duke of Cornwall for the time being, in such shares, at such times, in such manner and subject to such conditions and powers of revocation (including, if it is thought fit, a condition against alienation) as Her present Majesty may by order, countersigned by the First Commissioner of Her Majesty's Treasury and the Chancellor of the Exchequer, appoint:

Provided that any such appointment may be varied by another order made and countersigned in like manner.

Provision for
Her Royal
Highness the
Princess
Margaret in
the event of
her marriage.

5.—(1) In the event of the marriage of Her Royal Highness the Princess Margaret there shall be paid to Her Royal Highness during her life the yearly sum of nine thousand pounds, to commence from the date of her marrying.

(2) Any sum payable to Her Royal Highness the Princess Margaret under this section shall be in addition to any sum payable to Her Royal Highness by virtue of the provisions of section six of the Civil List Act, 1937.

Provision for
widow of the
Duke of
Cornwall.

6. In the event of the death during the present reign of the Duke of Cornwall for the time being leaving a widow, there shall be paid to her during her life the yearly sum of thirty thousand pounds, to commence from the date of his death.

Payments
by Treasury
in respect
of retired
allowances.

7.—(1) The Treasury may undertake the payment of any retired allowances granted, on scales and in accordance with conditions approved from time to time by the Treasury, by Her Majesty to or in respect of persons who have been members of the Royal Household.

(2) The Treasury may also undertake the payment of such as they may determine of any retired allowances granted by His late Majesty otherwise than as mentioned in section eleven of the Civil List Act, 1937, to or in respect of persons who have been members of the Royal Household.

Charge of
payments
under this Act.

8. The sums required under this Act for the payments under section two thereof for the Queen's Civil List, for the provision for His Royal Highness the Duke of Edinburgh, for Her Majesty's children other than the Duke of Cornwall for the time being, for Her Royal Highness the Princess Margaret, and, in the event

of the death of the Duke of Cornwall for the time being leaving a widow, for his widow, and for the payment of retired allowances payable by the Treasury under this Act, and for the payment of Civil List pensions (whether granted before or after the passing of this Act), shall be charged on and paid out of the Consolidated Fund or the growing produce thereof, and shall be paid at such times and in such manner as the Treasury may direct, and, in particular, effect shall be given to the reductions required by this Act to be made in the payments for the Queen's Civil List at such times and in such manner as the Treasury may direct.

9.—(1) Of the sum of four hundred and seventy-five thousand pounds for the Queen's Civil List specified in subsection (1) of section two of this Act which is attributable to any calendar year—

Application
of sums paid
for the Queen's
Civil List.

- (a) the amounts specified in the First Schedule to this Act for classes I to IV shall be appropriated to expenditure of those classes respectively in that year;
- (b) the amount specified in the said Schedule for supplementary provision shall be dealt with as follows, that is to say—

- (i) that amount shall be available, up to twenty-five thousand pounds, for making contributions towards expenses of the performance of duties pertaining to the Royal Family by those of Their Royal Highnesses for whom Parliament has not made provision;

- (ii) the trustees hereinafter mentioned shall make arrangements for securing that, if as respects any calendar year the aggregate of the amounts specified in the said Schedule for classes II and III is less than the aggregate of the audited expenditure of those classes, so much of the amount specified in the said Schedule for supplementary provision as is not applied in making such contributions as aforesaid shall be available to make good the deficiency;

- (iii) subject as aforesaid that amount shall be paid to the trustees, to be accumulated by them for making good deficiencies in subsequent years.

(2) If, as respects any calendar year, the aggregate of the amounts specified in the First Schedule to this Act for classes II and III exceeds the aggregate of the audited expenditure of those classes, then out of the appropriations to those classes an amount equal to the excess shall be transferred to the trustees, to be accumulated by them as aforesaid.

(3) If, as respects any calendar year, the aggregate of the amounts specified in the First Schedule to this Act for classes II and III and for supplementary provision is less than the aggregate of the audited expenditure of classes II and III and of any contributions not exceeding twenty-five thousand pounds made as

mentioned in subsection (1) of this section, the trustees shall make good the deficiency by application of moneys in their hands by virtue of this section.

(4) The trustees may at the request of the Treasury make out of moneys in their hands by virtue of this section advances towards meeting expenditure of class II or class III before that expenditure has been audited, and, where such advances have been made, such adjustment shall be made after the audit as may in the circumstances of the case appear to the Treasury to be required.

(5) If, as respects any calendar year, there is in the case of one of classes II and III a deficiency, and in the case of the other of those classes an excess, in the amount specified therefor in the First Schedule to this Act as compared with audited expenditure, the Treasury may direct that the appropriations to the class as to which the excess arises be applied, up to the amount of the deficiency, in meeting expenditure of the other class.

(6) Any moneys in the hands of the trustees by virtue of this section at the end of the present reign shall be dealt with in such manner as Parliament may hereafter determine.

Constitution
of Royal
Trustees.

10. The persons who are for the time being the First Commissioner of Her Majesty's Treasury, the Chancellor of the Exchequer, and the Keeper of Her Majesty's Privy Purse shall be the Royal Trustees for the purposes of this Act, and shall be a body corporate by that name, and any act of the trustees may be signified under the hands and seals of the persons who are the trustees for the time being.

Meaning of
"net revenues
of the Duchy
of Cornwall".

11.—(1) For the purposes of this Act the expression "net revenues of the Duchy of Cornwall" means, in relation to any year, the sum certified in respect of each year by the joint certificate of the auditor of the Duchy and the auditor of the Civil List to be the surplus in that year of the receipts of the Duchy on revenue account over payments on revenue account.

(2) In determining for the purposes of this section what receipts and payments are to be taken to be receipts and payments on revenue account, the two auditors shall follow the ordinary practice of the Duchy as existing at the time of the passing of this Act, and shall include in their certificate a statement that they have complied with the provisions of this subsection.

Adjustments in
respect of parts
of years.

12. Where any of the yearly payments mentioned in this Act, or any of the reductions therein mentioned of the yearly payments for the Queen's Civil List, fall to be made in respect only of part of a year, such adjustments of and in relation to those payments and reductions shall be made as may in the circumstances of the case appear to the Treasury to be required.

13.—(1) Sections five and six of the Civil List Act, 1837 (which relate to Civil List pensions) shall continue to apply during the present reign and a period of six months afterwards, but Civil List pensions shall not be granted as chargeable on the sum paid for the Civil List: Continuance of enactments, repeal and commencement.

Provided that in the said section five the words “ five thousand pounds a year ” shall be substituted for the words “ one thousand two hundred pounds a year ” in each place where those words occur, and that in the said section six the words “ thirty-first day of March ” shall be substituted for the words “ twentieth day of June ” in each place where those words occur.

(2) The Civil List Audit Act, 1816, and all other enactments relating to the Civil List of the last reign and not hereby superseded or expressly repealed, shall continue to apply to the Civil List under this Act, and nothing in this Act shall affect any rights or powers for the time being exercisable with respect to any of the hereditary revenues which are by this Act directed to be paid into the Exchequer.

(3) The provisions made by this Act shall be in substitution for the provisions made by sections one and two, subsections (1) and (4) of section four, section five, sections seven and eight, section ten, section twelve, and subsections (1) to (4) of section fifteen, of the Civil List Act, 1937, and by the Princess Elizabeth's and Duke of Edinburgh's Annuities Act, 1948; and the enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall take effect as from the last demise of the Crown, and such adjustments shall be made as appear to the Treasury necessary for giving effect to this subsection.

14. This Act may be cited as the Civil List Act, 1952.

Short title.

SCHEDULES

FIRST SCHEDULE

Section 9.

<i>Classes of Expenditure</i>				<i>Amounts</i>
				£
I.	Her Majesty's Privy Purse	...	...	60,000
II.	Salaries of Her Majesty's Household	...	...	185,000
III.	Expenses of Her Majesty's Household	...	...	121,800
IV.	Royal bounty, alms and special services	...	...	13,200
V.	Supplementary provision	...	...	95,000
Total				475,000

Note.—Effect shall be given to the reductions in the total of the Civil List which are under this Act to be made in respect of periods during which the Duke of Cornwall for the time being is a minor, or during which the Duchy of Cornwall is vested in Her Majesty, by reducing in the first place the appropriations for Class I, and then, if and so far as may be necessary, the appropriations for Class II.

Section 13.

SECOND SCHEDULE
ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 Edw. 8. & 1 Geo. 6. c. 32.	The Civil List Act, 1937 ...	Sections one and two. In section four, subsections (1) and (4). Section five. Sections seven and eight. Section ten. Section twelve. In section thirteen, the words " for the King's Civil List ", the words " Her Royal Highness the Princess Elizabeth and ", the words " and for the payment of Civil List pensions, whether granted before or after the passing of this Act ", and the words from " and, in particular " to the end of the section. In section fourteen, the words " or any of the reductions of the yearly payments ", and the words " and reductions ". In section fifteen, subsections (1) to (4). The Schedule. The whole Act.
11 & 12 Geo. 6. c. 14.	The Princess Elizabeth's and Duke of Edinburgh's Annuities Act, 1948.	

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Civil List Audit Act, 1816	56 Geo. 3. c. 46.
Civil List Act, 1837	1 & 2 Vict. c. 2.
Civil List Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 32.
Princess Elizabeth's and Duke of Edinburgh's Annuities Act, 1948	11 & 12 Geo. 6. c. 14.

